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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 37

AN ACT TO AMEND TITLE 13 OF THE DELAWARE CODE RELATING TO FREE LEGAL COUNSEL FOR
RELATIVES OF CERTAIN CHILDREN IN ADOPTION PROCEEDINGS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 905, Title 13 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 905. Appeal from decision of the Department or licensed agency.

(a) In any case where the Department or a licensed agency refuses to place a child for adoption when requested by
the parent of the child, or refuses the request of any person that a child be placed with such person for adoption, or
terminates any placement prior to adoption contrary to the wishes of the birth parent or prospective adoptive parent of the
child, the decision of the Department or a licensed agency in so refusing or so terminating shall be final unless within 30
days after notice of refusal or termination, the birth parent or proposed adoptive parent ~~shall appeal~~ appeals to the Family
Court of the county in which the adoption is proposed. The Department or licensed agency ~~shall~~ may not remove a child
who is legally free for adoption from an adoptive placement prior to the adoption without good cause.

(b) The appellant has a right to free legal counsel under § 933 of this title if all of the following apply:

(1) The child is in Department custody.

(2) Parental rights have been terminated and the child is free for adoption.

(3) The appellant was prior to the termination of parental rights a sibling, grandparent, uncle, aunt, first
cousin, first cousin once removed, great-grandparent, grandaunt or granduncle, half sibling, stepparent, stepsibling,
steptaunt or stepuncle, or stepgrandparent of the child whose adoption is sought.

Section 2. Amend § 917, Title 13 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 917. Appeal.

(b) The Department, licensed agency, or any person party to the proceedings may file ~~such appeal.~~ an appeal under
subsection (a) of this section. The appellant has a right to free legal counsel under § 933 of this title if all of the following
apply:

(1) The child is in Department custody.

(2) Parental rights have been terminated and the child is free for adoption.

(3) The appellant was prior to the termination of parental rights a sibling, grandparent, uncle, aunt, first cousin, first cousin once removed, great-grandparent, grandaunt or granduncle, half sibling, stepparent, stepsibling, stepaunt or stepuncle, or stepgrandparent of the child whose adoption is sought.

Section 3. Amend Subchapter I, Chapter 9, Title 13 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 933. Right to free legal counsel for a relative of a child in Department custody in adoption proceedings.

(a) For purposes of this section, “relative” means any sibling, grandparent, uncle, aunt, first cousin, first cousin once removed, great-grandparent, grandaunt or granduncle, half sibling, stepparent, stepsibling, stepaunt or stepuncle, or stepgrandparent of a child who is the subject of the adoption petition.

(b) A petitioner seeking to adopt a child has the right to free legal counsel at all stages of the adoption proceedings, not including any termination of parental rights petition filed before or along with the adoption petition, if all of the following apply:

(1) The child is in Department custody.

(2) Parental rights have been terminated and the child is free for adoption.

(3) The appellant was a relative prior to the termination of parental rights.

(c) If the petitioner meets the requirements of subsection (b), the Court shall ensure that an attorney authorized to practice law in this State is appointed to represent the petitioner in the adoption proceedings, regardless of indigency status. The attorney shall serve as counsel for the petitioner for the duration of the case, which includes serving as counsel in any appeal taken to the Supreme Court.

(d) If the petitioner declines appointment of counsel, the Court shall include the waiver of appointment in the Court’s order.

SYNOPSIS

This Act creates a right to free legal counsel for a relative seeking to adopt a child in the relative’s family after parental rights over the child have been terminated and the child is in the custody of the Delaware Department of Services for Children, Youth and Their Families. Relatives of a child for whom adoption is being sought who are eligible for free legal counsel in adoption proceedings include siblings, grandparents, uncles, aunts, first cousins, first cousins once removed, great-grandparents, grandaunts or granduncles, half-siblings, stepparents, stepsiblings, stepaunts or stepuncles, or stepgrandparents.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Wilson